

Smt. Mamata Sarkar vs Sri Ripan Sarkar on 22 April, 2025

Author: T. Amarnath Goud

Bench: T. Amarnath Goud

Page 1 of 7

HIGH COURT OF TRIPURA
AGARTALA

Mat. App.19 of 2024

Smt. Mamata Sarkar

.....Appellant

Versus

Sri Ripan Sarkar

.....Respondent

For the Appellant(s) : Mr. P. Roy Barman, Sr. Advocate
Mr. Samarjit Bhattacharjee, Adv.
Mr. Kawsik Nath, Advocate
Ms. S. Deb Barman, Advocate
Mr. Dipjyoti Paul, Advocate
Ms. Aradhita Debbarma, Advocate

For the Respondent(s) : Ms. Rumela Guha, Advocate
Mr. Mrinmoy Debnath, Advocate
Ms. Sudipa Nath, Advocate
Ms. Debalina Chakraborty, Advocate

Date of hearing & delivery
of judgment and order : 22.04.2025

Whether fit for reporting : Yes/No.

HON'BLE MR. JUSTICE T. AMARNATH GOUD
HON'BLE MR. JUSTICE BISWAJIT PALIT

Judgment & Order (Oral)

[T. Amarnath Goud. J.]

When the case is called, learned senior counsel, Mr. P.

Roy Barman assisted by Mr. S. Bhattacharjee, learned counsel
and Ms. S. Deb Barman, learned counsel appears on behalf of
Page 2 of 7

the appellant wife. No representation has been made in respect
of respondent husband.

[2] The present appeal is filed under Section 19(1) of the
Family Court's Act, 1984, read with Section 28 of the Hindu
Marriage Act, 1955, against the Judgment, dated, 17.04.2024,
passed by the learned Judge, Family Court, Agartala, West
Tripura, in T.S (Divorce) 87/2023.

[3] In brief, the case of the appellant wife is that the
marriage between the appellant and respondent was solemnized
on 01.06.2016 as per Hindu rites, rituals and customs and no
issue was born out of their wedlock. After one month of the
marriage, the respondent started to make demand for dowry and
the respondent has been supported by his parents and other
relatives. It is contended that the respondent demanded Rs.
3,00,000/- (Three Lakhs) and one motor bike as dowry and the
matter was informed to the elderly people of Bamancharra and
on 26.02.2017 'village salishi sabha' was convened to solve the
dispute between the appellant and the respondent. It is further
contended in the appeal that, in the said sabha, the respondent
expressed regret for his conduct and dispute was settled as the
respondent committed to live peacefully and happily with the

appellant but, thereafter, again the appellant was subjected to cruelty by the respondent by causing her physical and mental

Page 3 of 7

torture upon her. It is submitted that, in the last week of May, 2017 the appellant was subjected to severe assault and cruelty by the respondent and her in-laws and she was driven out of her matrimonial home. The appellant had been compelled to take shelter at her parental home and since then, the appellant was not paid any maintenance from her husband for which, she was compelled to file an application under Section-125 of Cr.P.C for maintenance vide Case No. Miscellaneous 115 of 2018.

[4] It is further contended that the learned Judge, Family Court Agartala, West Tripura, vide Order, dated, 13.12.2018, allowed maintenance @ Rs. 5,000/- in favour of the appellant but the respondent had not paid maintenance in terms of the aforesaid order of the learned Family Court. Being aggrieved, the appellant initiated proceeding under Section-128 of Cr. P.C for enforcement of the maintenance order. Thereafter, the appellant filed one complaint before the learned Chief Judicial Magistrate, West Tripura, Agartala, for taking cognizance of offence under Section 498(A)/34 of IPC against the respondent and the said complaint has been registered as Case No. 103 of 2018.

[5] The Respondent filed an application u/s 13(1) (ia) and

(ib) of the Hindu Marriage Act, 1955 for dissolution of the marriage between the appellant and the respondent by a decree

Page 4 of 7

of divorce on the ground of cruelty and desertion before the Court of Additional District Judge, Kamalpur, Dhalai. Thereafter, the appellant filed an application before this Court, vide Tr.P.(C) No. 24 of 2022 for transferring TS (Div)20/2019 from the file of learned Additional District Judge, Kamalpur, Dhalai to the file of learned Family Court, Agartala, West Tripura and by Order, dated, 09.09.2022 passed by the this Court, the said application has been allowed. The said Divorce Petition was thereby transferred from the file of learned Additional District Judge, Kamalpur, Dhalai and the said application was registered as T.S (Divorce)-87/2023, in the file of learned Family Court, Agartala, West Tripura.

[6] Thereafter, learned Court below upon hearing the parties and on perusal of all the material evidence on record, by its impugned judgment and order dated 17.04.2024 passed in T.S.(Divorce) 87 of 2023, allowed the application of the respondent husband dissolving the marriage between him and the appellant by a decree of divorce. The relevant contents of the said impugned order dated 17.04.2024 passed by the learned Court below is extracted hereunder:

".....In view of the findings and decision arrived at in the preceeding paragraphs of the judgment, the husband-petitioner Sri Ripan Sarkar is entitled to the decree of divorce

as prayed for against his wife-respondent Smt Mamata Sarkar u/s. 13(1)(ia)&(ib) of the Hindu Marriage Act, 1955.

Page 5 of 7

As the wife-petitioner has not claimed for any maintenance or alimony from the husband-petitioner, this court refrains from awarding any kind of maintenance or alimony from the husband-petitioner at this stage.

ORDER

30. In the result, the petitioner husband Sri Ripan Sarkar has successfully established the case of different types of cruelty including desertion for granting decree of divorce against the respondent-wife Smt Mamata Sarkar and so the prayer of the petitioner under Section 13(1)(ia)&(ib) of the Hindu Marriage Act, 1955 is allowed. There shall be no marital bonding between petitioner-husband Sri Ripan Sarkar and the respondent-wife Smt Mamata Sarkar from today i.e, from 30- 08-2023 and hence the marriage between the parties held on 01-06-2016 is hereby dissolved by a decree of divorce.

31. The case is disposed of on contest.

32. Prepare decree accordingly within 15 days.

33. Supply copy of the decree to both the parties at free of cost."

[7] Aggrieved by the aforesaid order dated 17.04.2024 passed by the learned Court below, the appellant wife has filed the instant appeal seeking the following reliefs:

"Under the circumstances, stated above, it is submitted, that, the Hon'ble High Court, will be kind enough to admit the instant Appeal filed Under Section 19(1) of the Family Court's Act, 1984, against the Judgment, dated, 17.04.2024, passed by the L'D Judge, Family Court, Agartala, West Tripura, in TS (Divorce)-87/2023,

(i) Issue notice.

(ii) Call for records.

(iii) Hear both sides and

(iv) After hearing allow the Appeal filed Under Section 19(1) of the Family Court's Act, 1984, against the Judgment & Decree, dated, 17.04.2024, passed by the L'D Addl. Judge, Family Court, Agartala, West Tripura, in TS (Divorce) -87/2023, by setting aside the aforesaid Judgment.

The Hon'ble High Court may also pass any further Order/Orders as may be deemed fit and proper [8] During the course of argument it is contended on behalf of the appellant wife that learned Court below while granting decree of divorce in favour of the respondent-husband did not consider for granting any permanent alimony to the appellant wife. It is submitted on behalf of the appellant that the appellant was entitled to permanent alimony. [9] It is seen from record that a complaint was lodged under Section 498(A)/34 IPC in the Police Station, Kamalpur, Dhalai District and subsequently a case being case No. PRC (WP) 73 of 2018 was registered. The said case was ended in acquittal by the judgment and order dated 31.08.2019 passed by the learned Judicial Magistrate 1st Class, Kamalpur Dhalai Judicial District.

[10] Hence, in view of the said allegations brought against the husband and his family members, this Court feels that at this stage, there is no scope of re-union of the parties and to construct the matrimonial tie between them would be a futile exercise.

[11] It is also seen from record that the appellant wife filed a petitioner under Section 125 of Cr.P.C. against the respondent husband before the Court of Judge, Family Court, Agartala, West Tripura seeking maintenance. The said case was registered as Miscellaneous 115 of 2018. It is reflected in the order dated 13.12.2018 of the said maintenance case that according to the appellant wife, the respondent was getting a salary of Rs.15,000/- per month from Bandhan Bank.

[12] Considering all the facts and circumstances of the case, this Court is of the opinion that since, the respondent had been working in Bandhan Bank, which is a Govt. under taking in the year 2018, now, his salary may have enhanced and thus, ends of justice would be met if the respondent pays a sum of Rs.6,00,000/- as permanent alimony regarding the financial support that the wife appellant will receive after the divorce or separation. Accordingly, this Court awards permanent alimony of Rs.6,00,000/- (rupees six lakhs) to the appellant-wife which will be paid by the respondent-husband. The entire amount of Rs.6,00,000/- shall be paid by the respondent-husband in two equal monthly instalments w.e.f. 30th May, 2025 onwards to the appellant-wife. Hence, the impugned order dated 17.04.2024 passed by the learned Court below is set aside. Resultantly, the marriage between the parties is dissolved.

With the above observations and directions, the instant appeal is disposed of. As a sequel, miscellaneous application(s), pending if any, shall also stand closed.

B. PALIT, J

T. AMARNATH GOUD, J

Sabyasachi G.

SABYASACHI GHOSH GHOSH

Date: 2025.04.25 11:07:49 +05'30'